

## 6 The Theories

### Three Families

In the discussion that follows, I will defend a division of the available theories of the duty to obey the law into three groups or “families.”<sup>1</sup> This division will allow me (in this section) to discuss the merits and difficulties of two of these families briefly and in very general terms, largely summarizing arguments that I have made before. In particular, I will distinguish (what I call) Associative, Transactional, and Natural Duty theories of a duty to obey.<sup>2</sup> Associative accounts ground our duty to obey in our nonvoluntary occupation of certain duty-laden social roles, while Transactional accounts ground our duty (or obligation) to obey in our morally significant interactions with our states or fellow citizens. I will attempt (in this chapter) to explain and deal with these first two families of theories by revealing what I take to be the

1 The discussion that follows in this section draws heavily on my observations in “Political Obligation and Authority,” in Robert L. Simon (ed.), *The Blackwell Guide to Social and Political Philosophy* (Malden, MA: Blackwell, 2002).

2 I do not discuss here what might be considered a fourth family of theories – namely, pluralist theories that utilize aspects of more than one of my three families in their accounts of the duty to obey. In my view, the failures of the three families to account independently for the duty to obey infect any efforts to combine the insights of the various families. If our political societies are not cooperative schemes, then it is not “approximately true” that we owe them obedience as a matter of fairness. It is simply false. Only if each family could account for the duties of a distinct significant minority of citizens could they hope to account collectively for a general duty to obey. My criticisms of the three families of theories are not, however, consistent with such a supposition.

fatal defects that infect all possible members of the families, saving my more detailed discussion and criticism for the last family. Chapter 7 will then be devoted to a much more careful examination of the third – and currently the most popular – of these families of theories. Natural Duty theories of the duty to obey the law are those that ground our duty to obey not in who we are (as in Associative accounts) or in what we've done or enjoyed (as in Transactional accounts), but rather either (a) in the moral importance of advancing some impartial moral good or (b) in some moral duty thought to be owed by all persons to all others as moral equals, regardless of roles, relationships, or transactions. The theories of Kant and contemporary Kantians, consequentialists (e.g., utilitarians or perfectionists), and so-called necessity theorists all fall within this extended family.

The division of families of theories that I propose here is not, I think, especially new or controversial (despite the odd bedfellows it makes of Kantian and utilitarian theories). Indeed, I think the three families can all be found separately represented in even the earliest recorded (and still undoubtedly the best known) treatment of the philosophical problem of the duty to obey. I refer, of course, to Plato's dialogue *Crito*, a discussion of the duty of legal obedience that is now nearly 2,400 years old. *Crito* is Plato's (probably nonfictional) recounting of Socrates' justification for refusing to flee Athens after his trial and death sentence. In defending his decision to stay and die to his friend and follower Crito (who hopes to assist Socrates in escaping into exile), Socrates advances a layered argument, each portion of which is intended to support the conclusion that justice (or right) requires him to remain and obey the unjust command of the Athenian court. This argument is largely presented in Socrates' imagined conversation with the Laws of Athens, and its conclusion is an especially strong one: that Socrates is morally bound to virtually absolute obedience to the law, even where the law wrongly imposes a sentence of death.

In Socrates' conversation with the Laws, at least three kinds of arguments are clearly used and distinguished (and finally summarized) by the Laws to counter the case for disobedience that

Socrates imagines himself and Crito offering to them. The first argument is that the Laws (by which we may understand the state and the society as well) are like a father and master to Socrates, having “begotten, nurtured, and educated” him. These roles of child and servant of the state require Socrates to “either persuade it or do what it commands.”<sup>3</sup> The second claim is that the state and the laws, in raising him, have given Socrates a “share of all the fine things” available to it (51d). And the third distinct argument offered by the Laws is that by living in the state without objection, by bringing up children in its territories (and so on), even after “seeing the way in which [the Laws] decide [their] cases in court and the other ways in which [they] manage [their] city,” Socrates has, “by his act of staying, agreed with [the Laws] to do what [they] demand of him” (51d–52d).

Notice that the first of the Laws’ arguments emphasizes centrally who Socrates *is*. What he owes to the Laws he owes because of his identity, because of roles or positions he occupies. In the same way that we normally suppose a child owes its parents honor and obedience, simply by virtue of occupying the non-voluntary role (“child” or “offspring”), so Socrates, “begotten,” raised, and made who he is by the Laws and the state, finds himself in the unchosen role of the Laws’ child and servant, a role that carries with it a duty of honor and obedience. Accounts of the duty to obey the law that appeal in this way to position, role, or identity are the ones that I have called Associative theories.

The Laws’ second argument for a duty of obedience points to a different feature of Socrates’ situation. This argument emphasizes not who Socrates has become or the roles he plays in the state. It emphasizes instead what Socrates has received from the Laws’ workings. Athens has, under the Laws’ direction, given Socrates (and all of its other citizens) many significant benefits, some of which Socrates actually mentions but many more of which we can easily imagine. And we normally suppose that the recipients

3 *Crito*, 50d–51e. This and subsequent quotations are from the translation of *Crito* in A. D. Woozley, *Law and Obedience* (London: Duckworth, 1979). Subsequent quotations will be identified in the text by standard paginations.

of important benefits owe their benefactors something appropriate in return for that benefaction. In the case of the Laws, the “appropriate something” is, the Laws argue, obedience and support.

Finally, in the third argument noted earlier, the Laws point not to the ways in which Socrates has benefited from the Laws, but instead to what Socrates has freely *done*. He has freely, if only tacitly or implicitly, consented or agreed to abide by the verdicts of Athens’ courts. His consent presumably is supposed to have been given as well to the other basic ways in which the city is managed. We all agree, of course, that persons have a moral obligation to honor their promises and voluntary undertakings. And Socrates’ promise to obey was even clearer than that of many other Athenians, the Laws contend, since he demonstrated his satisfaction with Athens not only by remaining there when he might have freely emigrated, but also by virtually never leaving the city, by raising a family there, and so on.

The second and third arguments employed by Socrates (through the mouth of the Laws) both appeal to the nature of Socrates’ morally significant interactions or “transactions”<sup>4</sup> with the Laws or the city-state. Athens has benefited Socrates in significant ways. Socrates has promised or agreed to obey the Laws and support the state. While the second of these transactions (the promise) is necessarily voluntary (if it is to be binding), and the first (the benefaction) need not be, both arguments revolve around political transactions, morally significant things that have been done by or for Socrates. Accounts of the duty to obey that ground the duty in such political transactions are the ones that I have called Transactional accounts.

So the three arguments that are specifically individuated in the Laws’ summary of their case all utilize either Associative or Transactional duties or obligations to Athens. And the three arguments

4 I use the term “transaction” throughout this essay in a way that ignores one familiar aspect of its meaning – namely, that involving multilateral participation and negotiation. As I use the term here, for instance, benefiting another counts as a transaction even if only one party (the benefactor, say) is aware that the benefaction has occurred.

seem sufficiently general that they are plainly intended to apply not just to Socrates, but to many or all of his fellow citizens as well. Given their generality, it might easily be supposed as well that they apply equally to persons in contemporary political societies. But the Laws' overall argument that Socrates has a duty to obey does not in fact appear to be exhausted by the three kinds of arguments that are actually summarized in *Crito*. Indeed, the very first response made by the Laws to Socrates' proposal that he ignore his legal duty and escape seems to appeal to very different considerations than those we have thus far noted. What the Laws begin by saying is this: "Do you intend to do anything else by this exploit . . . than to destroy both ourselves the laws and the entire city – at least as far as you can?" (50a–b). Since private citizens of Athens cannot all disobey the lawful verdicts of Athenian courts without ultimately endangering the city's survival, Socrates' proposed escape, however innocent it might seem considered by itself, must be taken to be aiming at the impermissible end of Athens' destruction.

Both the location of this argument (at the very start of a discussion that only later mentions the three grounds of his duties) and its wording strongly suggest that it is intended to have force independent of the three other arguments discussed previously. For instance, if it is not *always* wrong to (try to) destroy a state or laws (as we might reasonably suppose, keeping in mind tyrannical or deeply unjust states), perhaps the Laws' idea is that it is wrong to destroy good or just states, of which Athens happens to be one. The goodness or justice of states/laws provides all persons with moral reasons not to aim at their destruction. We know that Socrates takes the Laws of Athens to be blameless in his unjust death sentence, for he accepts their reminder that "as things stand, you will leave here, if you do, wronged not by us the laws but by men" (54c). On this interpretation of the opening argument, then, it is Socrates' duty to be just and to uphold just institutions that bind him not to destroy the Laws (or to aim at that end). The justice or goodness of laws and states grounds a moral duty for all persons to respect or support laws or states with those properties.

On its face, of course, the opening argument appears to have a more consequentialist character than is true of the reading just proposed. Perhaps the idea is simply that Socrates' escape would be wrong because it would have worse consequences than would his remaining to face his legally mandated death sentence. By remaining, Socrates would die, of course (though he seems to regard that as no great evil, either for himself or for his friends); but far worse would be his escape's contribution to the destruction of the Laws and the city. Alternatively, an even more natural consequentialist reading of the text would ascribe to it not a direct consequentialist argument of this sort, but rather a "generalization" argument. Socrates' escape would be wrong because if all others in similar positions acted as he proposes to, then the consequences would be far worse than if all accepted the verdicts of the courts. Only the hypothetical bad consequences of generalized escape, not the actual expected bad consequences in Socrates' particular case, would be necessary (on this reading) to argue for the wrongness of escape.

We will briefly discuss in Chapter 7 the persuasiveness of these kinds of consequentialist arguments. The point for now, however, is that both consequentialist arguments for the duty to obey, as well as the argument from a duty of justice, all seem to utilize at their cores neither Transactional nor Associative "facts" about Socrates and the Laws of Athens. Socrates' duty not to try to destroy the Laws is explained instead by appeal to the moral quality of the Laws or the impartial moral values that his legal obedience will bring about or advance – values such as happiness or justice. Our general duties to advance or respect such values, by (in this case) upholding the institutions that embody and promote them, are what explain the wrongness of Socrates' proposed escape on all three readings of the opening "destruction argument." The theories that in this way ground our duty to obey the law in one (or more) of the general moral duties that we have simply as persons and moral equals are the theories that I referred to previously as Natural Duty theories. This essay is principally devoted to an examination of this last kind of theory of the duty to obey.

Let me try to focus these initial remarks about my proposed division of theories of the duty to obey – and try to make clearer the character of each of the families I’ve identified – with some relatively elementary observations about the nature of moral requirements. All moral requirements are either general or special. Similarly, all moral requirements are either voluntary or non-voluntary. Moral requirements are general when they bind us simply in virtue of our personhood and moral equality, irrespective of any special roles or relationships into which we may have entered (or in which we may find ourselves) and any particular binding acts we may have performed. The familiar moral duties not to murder, assault, or lie count as general requirements, as do any duties to promote impartial values like justice or happiness. These duties are often said to be owed by us to persons generally – or, in some cases, not to be owed to anyone at all. Special moral requirements, by contrast, are grounded in (or arise within) those special relationships that we have (or freely make) with particular others or groups, and they are owed specifically to those others or groups. So promissory or contractual obligations, obligations to cooperate within social groups, and obligations to friends, family, or neighbors would all count as special moral requirements. Just as familiar is the (related, but not identical) division of moral requirements into those that are voluntary – that is, those that rest on a voluntary performance of our own, such as consent, promise, perhaps free acceptance of benefits, deliberately injuring another, or choosing to create a child – and those that fall on us nonvoluntarily, simply because we are persons or because we occupy some nonvoluntary role or status.

If these two dichotomies are exhaustive (as I believe them to be), then there might at first seem to be four possible classes of moral requirements: general, voluntary; general, nonvoluntary; special, voluntary; and special nonvoluntary. But the first of these possible classes – the general, voluntary moral requirements – seems to me to be internally inconsistent, hence empty. Our voluntary performances cannot ground moral requirements but do so irrespective of our special relationships or performances. The moral significance of our voluntary performances is precisely that

they create or constitute special relationships or performances. So let us say instead that all moral requirements fall into one of three classes: general, nonvoluntary; special, voluntary; or special, nonvoluntary.

Now the three families of theories that we have been discussing – Associative, Transactional, and Natural Duty theories – typically employ respectively in their accounts of the duty to obey the three different classes of moral requirements. Associative theories emphasize the nonvoluntary roles or positions we occupy, and so the duty to obey that is supposed to be grounded in these role relationships must be seen as a special, nonvoluntary moral requirement. Transactional theories tend to focus our attention on special, voluntary requirements that bind us to obey, such as those grounded in our promises, our consent, or our free acceptance of cooperatively produced benefits. Transactional theories may also utilize special, nonvoluntary requirements, but only when these requirements arise from real transactions – such as Socrates' receipt of important benefits from the Laws, benefits that he had no real option of refusing (at least until he was old enough to make a decision to emigrate). Lastly, Natural Duty theories employ in their accounts requirements to promote impartial values or requirements that bind us simply because we are persons. They must, then, identify our duty to obey the law with some kind of general, nonvoluntary moral requirement.

These observations about the three families of theories, elementary though they may be, allow us to see clearly a couple of important points about the theoretical obstacles that the theories in question will have to overcome. First, Associative and Natural Duty theories seem to have an advantage over (at least) voluntaristic Transactional theories in one way that their answers (to our question about the duty to obey the law) square with ordinary conceptions of the duty to obey. For few nontheorists, I would guess, think that their duty to obey the law is contingent on their having performed some voluntary undertaking to bring themselves under the law's authority. Our duty to obey seems to most persons to be a relatively basic, nonvoluntary feature of

our moral lives (analogous, perhaps, to familial duties), just as Associative and Natural Duty theories aver.

Second, however, it is Associative and Transactional theories that appear to have a clear initial advantage over Natural Duty theories in a different way that their answers fit ordinary conceptions of the duty to obey. Both Associative and Transactional theories claim that our duty to obey is a *special* moral requirement. Our duty will thus be owed to some particular association, group, or person, depending upon the associative roles we occupy or the transactions in which we have been involved. Natural Duty theories, by contrast, have to understand our duty to obey as a general requirement, one that binds us irrespective of the special features of our lives, and one that is owed to persons generally. But our duty to obey the law is most often understood as a duty to obey *domestic* law, as a moral requirement that binds us specially to our own laws (countries, governments, states, etc.), based in the special relationship we have to one particular legal system. It seems clear that Associative and Transactional theories, by appealing to special moral requirements to explain the duty to obey, can easily explain this feature of ordinary thought about that duty in a way that Natural Duty theories cannot. How can we have a natural duty, one based in our personhood and owed to all others, that nonetheless ties us specially to one particular institution in one particular social group? This special problem for Natural Duty theories of the duty to obey is what I have called the problem of “particularity,” and I will return to it at considerable length in Chapter 7 of this essay.

It may seem from these initial points that Associative theories or nonvoluntaristic Transactional theories of the duty to obey are the obvious places to look for our answer, since those kinds of theories square with commonsense views of the duty in both of the ways just noted. The duties they identify as relevant to required legal obedience are (or can be) both nonvoluntary and special. But, as we will see, these initially promising theories face serious problems of other sorts. I begin with the Associative family of theories, reminding the reader that I intend to give here only the barest outline of the difficulties that I (and others) have already

identified. I will then proceed to give the Transactional family of theories the same kind of quick treatment, trusting that readers dissatisfied with this brevity will be willing to explore further the more careful and thorough work cited in the footnotes.

## Associative Theories

Associative theories of the duty to obey the law, as we have seen, try to rest the relevant moral duty on basic facts about persons' identities or facts about the legal, social, or political roles they occupy. These theories are familiar to us today chiefly in the work of communitarian theorists, themselves routinely inspired by the work of Aristotle, Burke, Hegel, or Wittgenstein. But at least one influential liberal theorist – Ronald Dworkin – has also defended an Associative theory of our duty to obey domestic law.<sup>5</sup> We have seen part of what makes Associative theories initially attractive: namely, the way in which they purport to explain the duty to obey as a nonvoluntary but still special duty (or obligation). But the principal, and in my view fatal, defect of such theories is also displayed plainly on their faces: The claims about our moral duties or obligations made by Associative theories are (and need to be) either too strong to be plausible or too similar to the claims made in Transactional or Natural Duty theories to be interestingly distinguishable from them. Thus, Associative theories are hung on the horns of a dilemma. They must either make claims that are counterintuitive and indefensible, or (once their claims are rendered plausible) they must collapse into some kind of non-Associative theory.<sup>6</sup>

5 Ronald Dworkin, *Law's Empire* (Cambridge, MA: Harvard University Press, 1986), 195–215.

6 The arguments of this section largely reproduce (in vastly more compact form) those I made in "Associative Political Obligations" and "External Justifications and Institutional Roles," both in my *Justification and Legitimacy*. For another (also skeptical) take on the relevance of Associative obligations to central questions in political philosophy, see the following papers by Christopher Wellman: "Associative Allegiances and Political Obligations" (*Social Theory and Practice* 23 [1997]), "Relational Facts in Liberal Political Theory: Is There Magic in the

In some versions of the Associative approach, the claims made are wildly strong: It is alleged to be analytic or to be a conceptual truth that citizens are subject to the authority of their states and have a duty to obey domestic law. But, depending on how such claims are intended, these uses of the Associative strategy can be easily shown to be either implausible or simply irrelevant. Nobody believes (or should believe) that just anyone who has been assigned by domestic rule or practice the legal position of “citizen” in any kind of state is morally bound to obedience. States can be monstrously unjust and oppressive or clearly illegitimate, and they can name whomever they please as their citizens (including persons living beyond their internationally accepted jurisdictions). But if we modify the argument to claim that only those are bound to obey who are legitimately subject to the authority of their legal and political institutions, then we have claimed something true (indeed, something analytic) at the cost of claiming something utterly uninteresting; for we have said nothing at all about what it is that *makes* a person legitimately subject to some state’s authority, which is the real issue that our three families of theories need to address.

More convincing Associative theories have made weaker and more interesting claims about our moral duties. But in all such cases, even moderately careful specification of the moral claims employed in the theories shows them to be in fact indistinguishable from those employed in Transactional and Natural Duty theories. Associative theories cannot, therefore, enjoy any of the advantages over those other two families of theories that their proponents allege (or imply). In previous discussions of these weaker Associative theories, I have divided them into three groups: what I’ve called “nonvoluntarist contract theories,” “identity theories,” and “normative independence theories.”

Pronoun ‘My’?” (*Ethics* 110 [2000]), “Friends, Compatriots, and Special Political Obligations” (*Political Theory* 29 [2001]). See also Leslie Green, “Associative Obligations and the State,” in Allan C. Hutchinson and Leslie Green (eds.), *Law and the Community* (Toronto: Carswell, 1989) and Philip Soper, *The Ethics of Deference* (Cambridge: Cambridge University Press, 2002), 169–72.

According to the first of these – the nonvoluntarist contract theories – citizens of normal political societies simply grow into networks of expectation and commitment that jointly define a kind of nonvoluntary, but nonetheless binding, contract with one another to act as good citizens of that society (by, for example, obeying the law and in other ways upholding the authority of the state). But these theories must fail doubly to achieve their goals. First, insofar as they appeal to the moral requirements arising from our commitments, they are plainly Transactional in inspiration, not Associative. And insofar as they appeal to moral requirements arising from others' expectations, these theories must be either utilitarian (hence Natural Duty theories) or simply non-explanatory: for others' expectations clearly do not impose on us moral duties unless those expectations are legitimate (it is psychologically possible for me to expect of you anything my heart desires); and that leaves the interesting work of explaining what *makes* others' expectations legitimate undone (with the most plausible solutions again being to appeal to Transactional or Natural Duty bases for expectation). Second, while nonvoluntarist contract theories may seem (but, in my view, ultimately are not) well equipped to address questions about the obligations that friends and neighbors might owe one another, they are utterly incapable of explaining how members of a large-scale, pluralistic political community could be taken to owe obligations to all of their fellow citizens (or to their state generally); for the interactions of typical members, hence their opportunities for commitment and for raising expectations, are routinely quite local, not national. And, in any event, expectation theories seem ill equipped to explain general moral duties to obey the law.<sup>7</sup>

Identity theories (the second class of Associative theories) attempt to explain our moral duty to obey domestic law by noting the practical incoherence of denying certain aspects of our identities, such as our roles as duty-bound members of a particular

<sup>7</sup> See William O. Edmundson, *Three Anarchical Fallacies* (Cambridge: Cambridge University Press, 1998), 21–4. Edmundson equates Associative theories with expectation accounts, which seems to me a mistake. But his critique of expectation accounts seems sound.

political community. Such roles are taken by many persons, the argument goes, to be absolutely central to their sense of who they are; persons cannot coherently simply reject the roles that define them or the duties bound up in those roles. But again, the argument proves either too little or too much. It is not at all clear why we should believe that mere identification with a duty-laden social role is sufficient to ground genuine moral duties. The mere fact that, for example, one's role as citizen of the Third Reich is central to one's practical identity surely does not show that one has a moral duty to discharge all of the institutional duties associated with that role (such as the legal duty to reveal the hiding places of Jews). Only, it seems, when our social and political roles are themselves morally defensible (and non-refusable by those unwilling to occupy them) could the duties associated with them be taken to be morally binding. But that simply returns us once again to the prior issue of the right kinds of arguments to use for demonstrating the moral authority of certain kinds of legal and political arrangements. Identification with a social role is either morally uninteresting or becomes interesting only after the questions with which we are here concerned (about the moral duties associated with social roles) have already been answered.

The last of the three kinds of Associative approaches – normative independence theories – simply affirms what the preceding arguments implicitly reject: namely, the normative authority of local practices. If the source of (some) genuine moral requirements is just their assignment to individuals by local social, legal, and political practices, then there is good reason to suppose that a general duty to obey the law might be among these genuine requirements, given the widespread local social expectations of compliance with and support for the legal and political institutions of our states of residence. But to accept this style of argument is to accept that the mere social instantiation of a practice, independent of any externally justifying point or virtues of that practice, is sufficient to make that practice's rules generate genuine moral requirements for those held subject to the rules. And to accept that, I think, is to reduce the relevant idea of a moral

*justification* for claims of duty to nothing at all. Something cannot count as a justification of P if it does not claim for P some special point, advantage, or virtue. But once the Associative theorist allows that only externally justified practices can define genuine moral requirements, then he owes us an explanation of why we should regard the practice, rather than the values that certify it, as the source of the relevant moral requirements. As far as I can see, such explanations are unforthcoming from Associative theories, likely for the simple reason that requirements that are defined *internally* in social practices (like those of politics and law) cannot be morally justified in any plausible or recognizable way without appeal to *external* moral considerations. And any appeal to such external considerations will transform the theory from an Associative theory to one actually based in Transactional or Natural Duty claims. Associative theories of the duty to obey must, to make their claims of moral duty plausible, transform themselves into non-Associative ones.

### **Transactional Theories**

The great weakness of the Associative theories, then, lies in the unpersuasive (or entirely absent) defenses of the moral principles on which they rely in their accounts of the duty to obey. There is simply no good reason to believe that the alleged moral duties or obligations that they utilize in their accounts are in fact real moral duties or obligations at all. This area of greatest weakness in the Associative theories is, by contrast, the greatest area of strength for Transactional theories. By and large, Transactional theories appeal in their accounts of the duty to obey to kinds of moral obligations or duties that are virtually universally accepted as genuine. This is most apparent in the most familiar kind of Transactional theory, which utilizes the obligations arising from consent, contract, or promise to explain the moral duty to obey the law. Few moral obligations or duties are acknowledged by more people than are the moral requirements arising from voluntary undertakings and agreements; for instance, even criminal gangs, warring armies or nations, and so on, which may dismiss

virtually all other moral duties, often still seem to regard themselves as bound by their agreements.

Transactional theories of the duty to obey have generally been either consent theories or reciprocity theories. According to consent theories, our duty to obey arises from those of our deliberate acts that constitute voluntary undertakings or agreements. The consent theory was given its first clear formulation by Locke and is appealed to in the foundational political documents of many modern nations (including the American Declaration of Independence). Reciprocity theories, by contrast, locate the source of our duty to obey in our responsibilities to reciprocate for the benefits we accept or receive from our legal systems, governments, or fellow citizens. Reciprocity theories, like consent theories, are transactional in character. Both concern morally significant interactions with legal and political institutions (or fellow citizens). Both concern what has been done by or for the citizen. And both capture much commonsense thinking about our duty to obey domestic law, as we saw in Socrates' imagined debate with the Laws. It is easy enough to identify the benefits that flow to us from living under law, as well as the ways in which our continuing to do so might be taken to involve an implicit agreement to obey that law. Despite their appeal to common sense, however, both varieties of Transactional theory face by-now-familiar obstacles.<sup>8</sup>

The different kinds of consent theories can be distinguished most clearly by attending to the varieties of consent to which they appeal in their arguments. The simplest and most intuitive sort of consent theory appeals to the *actual, personal* consent of individuals in order to explain their moral duties (or obligations) to obey the law. When you freely agree to obey, you are morally

8 The arguments of this section follow those I have previously made in *Moral Principles and Political Obligations*, Chapters IV, V, and VII; *On the Edge of Anarchy: Locke, Consent, and the Limits of Society* (Princeton, NJ: Princeton University Press, 1993), Chapter 8; and "Fair Play and Political Obligation: Twenty Years Later," in *Justification and Legitimacy*. For the many defenses (and alternative critiques) of Transactional accounts of the duty to obey (which are too numerous to list here), see the notes in these works.

bound to do so. Actual consent can be either express (e.g., the consent explicitly given in a promise, a contract, or an oath) or tacit (where acts whose conventional point is not solely that of giving consent acquire the significance of consent by virtue of special contexts in which they are performed<sup>9</sup>). Both kinds of actual consent plainly can ground moral obligations, though some theorists (notably Locke) have thought that express consent binds us more extensively or permanently than does tacit consent. It is not uncommon, however, to appeal as well or instead to certain kinds of *nonactual* consent in attempting to explain the citizen's duty to obey. For instance, *hypothetical* consent (or hypothetical contract) theories purport to derive our obligations to obey from the consent that would be given by some idealized version of ourselves, ranging from versions of ourselves that are merely purged of obvious defects to versions of ourselves that are perfectly rational (and motivationally simplified).

In my view, hypothetical consent theories are in fact best understood as disguised Natural Duty theories rather than as Transactional theories, despite their use of the language of consent. For the entire point of appealing to the consent of idealized persons, instead of that of actual persons, is to emphasize that our obligation to obey does not flow from any transactions with our states into which our flawed and irrational selves might have entered. That obligation derives instead from the virtues or morally important qualities of our states that would elicit the consent of ideal persons (who would rightly perceive and appreciate true virtue or goodness in a way that actual persons often do not). Actual consent theories, then, seem to be the only genuinely transactional form of consent theory.

But however clearly we might perceive the moral obligations that arise from actual consent, actual consent theories of our duty to obey the law confront serious and well-known difficulties:

9 Some acts (like saying "I promise" or "I agree" or "I pledge") have as part of their default conventional significance consenting to new obligations. Other acts, like remaining silent, have no clear linguistic/conventional significance. But remaining silent can be a way of (tacitly) giving consent in certain contexts, such as when it constitutes a free, deliberate response to a call for dissent.

most obviously, difficulties in terms of realism. Real citizens in real political communities seldom do anything that can be plausibly described as either a promise to obey or any other kind of freely made commitment to comply with domestic laws. Political life offers very few occasions for making explicit oaths of obedience or allegiance, except in the cases of naturalized citizens or in contexts that are plainly tainted with threats of state coercion. The free political act that perhaps most resembles consent (among those acts performed by many citizens, at least in democracies) is that of voting in democratic elections. But voting is done against a conventional background that strongly implies that such acts *cannot* be taken as the source of any duty to obey the law or support the government. For those duties are clearly represented as both preceding the act of voting – indeed, voting is often seen precisely as part of the content of citizens’ duty of support (and is actually legally required in some democracies) – and as in no way diminished or eliminated by citizens’ declining to participate in elections (as, of course, significant minorities and occasional majorities in existing democracies routinely do).

Turning to more tacit consensual acts, it proves just as difficult to identify any kind of act that is performed by most real citizens in decent states that could be plausibly understood as an act of tacit consent to obey the law or support the government. Mere continued residence (Locke’s famous suggestion) or nonresistance, for instance, while widely practiced, are in fact remarkably bad candidates for acts of consent to obey. For many citizens there are few acceptable options to remaining in their states and obeying (most) law, and for most persons active resistance to the state is in effect impossible. And for none of us is there any option to living in some state or other, all of which make (at least) the same core demands on us. These facts raise serious doubts about the voluntariness of any widely performed acts that might be alleged to be binding acts of political consent. And in the absence of an adequate level of voluntariness, such acts simply cannot be counted as grounding moral duties to obey the law.

If Transactional consent theories fail in these ways to explain a general duty of legal compliance, Transactional reciprocation

theories, in my view, fare no better. These latter theories can be divided into two principal groups: those that appeal to our duties or obligations to be *fair* and those that appeal to so-called debts of *gratitude* (or to some simple duty of return for benefits conferred). Broadly speaking, fairness theories hold that persons who benefit from the cooperative sacrifices of others, made in support of a mutually beneficial scheme, have a moral obligation to bear their own fair share of the burdens assigned within that scheme. Taking the benefits of cooperation without doing one's part in the scheme that produces them is to unfairly ride free, to take advantage of others. Gratitude theories hold more simply that we have a moral duty to make appropriate returns for the benefits provided us by others. Political life in decent states plainly involves both a grand, mutually beneficial scheme and the provision of important benefits. Thus, both styles of reciprocation theory seem *prima facie* promising.

But gratitude theories of a duty to obey collapse rapidly under even the most charitable analysis of moral debts of gratitude. Even if it were true that we owed others a return for the unsolicited benefits they provided, it would not be possible to plausibly characterize the contents of such moral debts in any way that would help establish a duty of domestic legal obedience. Suppose that we do in fact owe benefactors a fitting return of some sort. Whatever else may be true of these debts, it is clear, first, that debts of gratitude are only owed to benefactors who have acted with certain motives and, second, that our benefactors are not entitled to themselves specify what shall constitute a fitting return. I am owed nothing if I accidentally benefit you while attempting to wrongfully harm you, for example; and I may not provide you with benefits and then simply name my reward. But the motives of states and legal systems when they benefit us are at best mixed or obscure (and it is quite possibly unintelligible to assign motives at all to such mechanical, institutional benefactions). Further, obedience to law, as we have seen, is compliance specifically in response to the fact that compliance is required by law. The state is in the business of saying how we shall behave, of saying what our "fitting return" shall be. It cannot, then, hope

to characterize its demands as the content of a debt of gratitude. And, given the minimal cost of extending the benefits of law and government to one additional person, a fitting return for such benefits might plausibly be thought to be different from or less than simple obedience to law.

Fairness theories have recently been more popular than gratitude theories among reciprocation theorists, largely due to the influence of Hart and Rawls. But even Rawls came to reject the fairness theory he once supported, arguing that duties of fairness only arise where the benefits of cooperative schemes are freely accepted, and that persons in real political societies seldom freely accept the benefits their societies provide (having no real choice in the matter). Typical citizens can thus not reasonably be thought to be treating others unfairly if they decline to reciprocate. Attempts to avoid Rawls' objection by allowing that even benefits we have not freely accepted obligate us to reciprocate invariably either collapse the fairness theory back into a simple (inadequate) gratitude theory or turn it into a Natural Duty account by stressing not fairness, but rather the impartial moral value of the benefits states and legal systems provide. In any event, we should surely question whether the model on which fairness theories rely in motivating their accounts of our moral obligations – namely, that of small-scale cooperative ventures among face-to-face associates – can in any way be realistically applied to the entities at issue in a theory of our duty to obey the law: namely, very-large-scale, pluralistic, loosely associated polities marked by social, regional, economic, or racial divisions.<sup>10</sup>

10 Each of the accounts of our duty to obey the law that I discuss here – Natural Duty, Associative, and Transactional – can, of course, be defended in a less conservative form than is suggested in the text. That is, all such accounts can be defended as the correct account of any duty to obey that persons might actually have, but with the admission that few actual persons have such a duty. My own view, for example, is that actual consent is the only possible ground of a moral duty to obey the law (so that actual consent theory is in this sense the correct account of our duty to obey) but that very few real citizens have given their consent. Especially in light of the problems facing all of the argumentative strategies discussed in this essay, less conservative approaches to the problem of this sort seem especially attractive.